

We have omitted many other records, but because they be of like nature we have contented our self with these. And now we will consult with our book cases, and reports of law: wherein either *coram rege et concilio*, or *coram rege et concilio in camera stellata*, is named.

Book cases and reports of law.

39 E. 3. fo. 14. 19 aff. pl. 1. 40 aff. 38. 13 E. 4. 9. *in camera stellata*. Vid. 27 E. 3. cap. 13. 21 E. 4. 71. *in camera stellata*. 2 R. 3. fo. 2. & 11. *in camera stellata*. 1 H. 7. 3. *in camera stellata*. This court in ancient times sat but rarely, for three causes. First, for that enormous and exorbitant causes which this court dealt withall only in those days rarely fell out. Secondly, this court dealt not with such causes, as other courts of ordinary justice might condignely punish, *ne dignitas hujus curiæ vilesceret*. Thirdly, it very rarely did sit, lest it should draw the kings privie council from matters of state, *pro bono publico*, to hear private causes, and the principall judges from their ordinary courts of justice.

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3 H. 7. ca. 1.

That which now is next to be considered in *serie temporis* is the statute of 3 H. 7. the letter whereof followeth:

21 H. 8. ca. 20.
The president of
the kings coun-
cell added.

It is ordained that the chancelour and treasurer of England, and the keeper of the kings privy seal, or two of them, calling to them a bishop and a temporal lord of the kings most honourable privy counsell, and the two chief justices of the kings bench and common place for the time being, or other two justices in their absence, upon bill or information put to the said lord chancelour or any other against any person for unlawfull maintenance, giving of liveries, signs and tokens, and reteyners by indentures, promises, oaths, writings or otherwise, imbraceries of his subjects, untrue demeaning of sherifs in making of pannels, and other untrue returns, by taking of mony, by injuries, by great riots, and unlawfull assemblies, have authority to call before them by writ or privy seale the said misdoers, and they and other by their discretion, by whom the truth may be known to examine, and such as they find therein defective, to punish them after their demerits, after the form and effect of statutes thereof made in like manner and form as they should, and ought to be punished, if they were thereof convicted after the due order of law.

Camden Brit.

Camera stellatae auctoritatem prudentissimus princeps Henricus septimus ita parliamentaria adauxit et constabiliavit, nonnulli primum instituisse falso opinantur.

Upon this statute and that which formerly hath been said, these fix conclusions do follow. The first conclusion is, that this act of 3 H. 7. did not raise a new court: for there was a court of star-chamber, and all the kings privy council judges of the same. For if the said act did establish a new court, then should those four or any two of them be only judges, and the rest that they should call to them should be but assistants, and aidants, and no judges: for the statute of 31 E. 3. cap. 12. which raiseth a new court, and before

fore new judges, is introductory of a new law, by having conuſance of error in the exchequer, which ſhall be reverſed in the exchequer chamber before the chancelour and treaſurer, or calling to them two judges, there the chancelour and treaſurer are only judges in the writ of error, and ſo in the like. But it is clear that the two juſtices in the ſtar-chamber are judges, and have voices, as it hath been often reſolved, and daily experience teacheth. And further to clear this point, if the juſtices ſhould be but aſſiſtants and no judges in the ſtar-chamber, for that they are to be called, &c. then, and for the ſame reaſon ſhould neither lord ſpiritual nor temporal, nor other of the privy counſell be judges, nor have voices in the court of ſtar-chamber. And therefore the ſudden opinion in 8 H. 7. and of others not obſerving the ſaid diſtinction between acts declaratory of proceedings in an ancient court, and acts introductory of a new law in raiſing of a new court, is both contrary to law, and continually experience.

8 H. 7. 13.
Flow. Com. 393.

The ſecond concluſion is, that the act of 3 H. 7. being in the affirmative is not in ſome things purſued. For where that act directeth that the bill or information ſhould be put to the lord chancelour, &c. all bills and informations in that court are conſtantly and continually directed to the kings majeſty, as they were before the ſaid act; and it is a good rule, that where the act of 3 H. 7. is not purſued, there (if there be many judiciall preſidents in another fort) they muſt have warrant from the ancient court; and yet it is good (as much as may be) to purſue this act, there being no greater aſſurance of juriſdiction then an act of parliament. And where there be no ſuch preſidents, then the ſtatute as to the judges muſt be purſued: and that was the reaſon that in default of others, Sir Chriſtopher Wray chief juſtice of England for a time was made lord privy ſeal to ſit in the ſtar-chamber, *ne curia deſiceret in juſtitia exhibenda*.

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Thirdly, that this act being (as hath been ſaid) in the affirmative, and enumerating divers particular offences, albeit (injuries) is a large word, yet that court hath juriſdiction of many other, as is manifeſt by authority, and daily experience, and this muſt of neceſſity be in reſpect of the former juriſdiction.

Fourthly, this act in one point is introductory of a new law, which the former court had not, viz. to examine the defendant, which being underſtood after his anſwer made, to be upon oath upon interrogatories, which this ancient court proceeding in criminal cauſes had not, nor could have but by act of parliament, or preſcription, the want whereof eſpecially in matters of frauds and deceits (being like birds cloſely hatched in hollow trees) was a mean that truth could not be found out, but before the ſtatute the anſwer was upon oath.

Fifthly, where it is ſaid in this act, And to puniſh them after their demerits after the form and effect of ſtatutes made, &c. The plaintife may chooſe whether he will inform upon ſuch ſtatutes as this act directeth, or for the offence at the common law, as he might have done before this act, which proveth that this act taketh not away the former juriſdiction.

6. Laſtly, that the juriſdiction of this court dealeth not with any offence, that is not *malum in ſe*, againſt the common law, or *malum prohibitum*, againſt ſome ſtatute.

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